
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 16-0068
Mental Health Counselor License of	)	
	)	NOTICE OF REINSTATEMENT
MARK GARLICK	)	HEARING
License No. 001046	)	
Respondent.	)	

On August 15, 2018, the Iowa Board of Behavioral Science ("Board") received all required components of an application for reinstatement from Mark Garlick ("Respondent"). Respondent's license to practice as a mental health counselor was Indefinitely Suspended through a Settlement Agreement and Final Order approved by the Board on May 17, 2017 in the above-captioned case. The Board is authorized to hold a reinstatement hearing in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C (2018), and 645 IAC chapters 11, 31, and 33.

A. TIME, PLACE, AND NATURE OF HEARING

A contested case hearing regarding your application for license reinstatement shall be held on September 13, 2018 before the Board. The hearing shall begin at 1:00 p.m. and shall be located in the 5th Floor Conference Room #526 at the Lucas State Office Building, 321 E. 12th Street, Des Moines, Iowa 50319. In accordance with 645 IAC 11.31, you have the burden of proof at the hearing to establish that the basis for the surrender of your license no longer exists and that it is in the public interest for your license to be reinstated.

B. HEARING PROCEDURES

Filing of Pleadings. Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Science, Lucas State Office Building, 5th Floor, 321 E. 12th Street, Des Moines, Iowa 50319.

Presiding Officer. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge from the Department of Inspections and Appeals make initial rulings on prehearing matters, and be present to assist and advise the Board at the hearing.

Pre-hearing Conference. Any party may request a prehearing conference in accordance with 645 IAC 11.17 to discuss issues related to the hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

Public Interest Representation. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Steffensmeier
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, Iowa 50319

Ms. Steffensmeier can also be reached by phone at (515) 281-6690 or by e-mail at laura.steffensmeier@ag.iowa.gov.

Communications. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

Dated this 15th day of August, 2018.



Judy Manning, Board Executive
Iowa Board of Behavioral Science

Copies to:

Laura Steffensmeier
Assistant Attorney General
Laura.Steffensmeier@ag.iowa.gov

Brittany Spooner
Department of Inspections and Appeals
Brittany.Spooner@dia.iowa.gov

Connie Diekema, Respondent's Lawyer
Finley Law Firm, P.C.
699 Walnut Street, Suite 1700
Des Moines, IA 50309
cdiekema@finleylaw.com

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).